

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of January 15, 2025 (the "Effective Date"), by and between:

Nextera Global Technologies, Inc., a Delaware corporation with its principal office at 1200 Innovation Drive, Suite 500, San Francisco, CA 94107 ("Company" or "Service Provider"),

and

Meridian Health Systems, LLC, a Maryland limited liability company with its principal office at 8900 Rockville Pike, Bethesda, MD 20814 ("Client").

WHEREAS, Client desires to engage Company to provide certain technology consulting, software development, and data analytics services; and WHEREAS, Company desires to provide such services subject to the terms and conditions set forth herein.

1. DEFINITIONS

1.1 "Confidential Information" means all non-public information disclosed by either party to the other party, whether orally, in writing, or by inspection, including but not limited to trade secrets, proprietary data, software code, algorithms, customer lists, financial information, and business strategies. Confidential Information shall not include information that: (a) is or becomes publicly available through no fault of the receiving party; (b) was rightfully in the receiving party's possession prior to disclosure.

1.2 "Deliverables" means all work product, reports, software, documentation, and other materials created by Company in the performance of the Services.

1.3 "Services" means the technology consulting, software development, system integration, and data analytics services described in each Statement of Work.

2. TERM AND TERMINATION

2.1 This Agreement shall commence on the Effective Date and shall continue for a period of thirty-six (36) months (the "Initial Term"), unless earlier terminated in accordance with this Section 2.

2.2 Termination for Convenience. Either party may terminate this Agreement for any reason upon ninety (90) days prior written notice to the other party. Upon such termination, Client shall pay Company for all Services performed through the effective date of termination.

2.3 Termination for Cause. Either party may terminate this Agreement immediately upon written notice if the other party: (a) materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice; or (b) becomes insolvent or files for bankruptcy.

3. CONFIDENTIALITY

3.1 Each party agrees to hold the other party's Confidential Information in strict confidence and not to disclose such information to any third party without prior written consent. The receiving party shall use the same degree of care to protect Confidential Information as it uses to protect its own confidential information, but in no event less than reasonable care.

3.2 The obligations of confidentiality shall survive the termination of this Agreement for a period of five (5) years from the date of disclosure.

4. LIMITATION OF LIABILITY

4.1 **UNCAPPED LIABILITY.** NOTWITHSTANDING ANYTHING TO THE CONTRARY IN THIS AGREEMENT, COMPANY'S LIABILITY TO CLIENT SHALL BE UNLIMITED AND SHALL INCLUDE ALL DIRECT, INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, AND PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOST PROFITS, LOST DATA, BUSINESS INTERRUPTION, AND REPUTATIONAL HARM, REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE OR WHETHER COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THIS CLAUSE APPLIES WITHOUT ANY MONETARY CAP OR CEILING.

4.2 Client acknowledges that this unlimited liability provision was negotiated at arm's length and represents a material inducement for Client to enter into this Agreement.

5. INDEMNIFICATION

5.1 Company shall indemnify, defend, and hold harmless Client and its officers, directors, employees, agents, and affiliates from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) any breach of this Agreement by Company; (b) any negligent or wrongful act or omission of Company; (c) any claim that the Deliverables infringe any third-party intellectual property rights; or (d) Company's failure to comply with applicable laws. THIS INDEMNIFICATION SHALL BE UNLIMITED AND SHALL COVER ALL CONSEQUENTIAL DAMAGES.

6. INTELLECTUAL PROPERTY

6.1 All Deliverables created by Company under this Agreement shall be considered "work made for hire" and shall be the sole and exclusive property of Client. To the extent that any Deliverable does not qualify as work made for hire, Company hereby irrevocably assigns to Client all right, title, and interest in and to such Deliverable, including all intellectual property rights therein.

6.2 Company grants to Client a perpetual, irrevocable, worldwide, royalty-free, non-exclusive license to use any pre-existing intellectual property of Company that is incorporated into the Deliverables.

7. NON-COMPETE AND NON-SOLICITATION

7.1 **Broad Non-Compete.** During the term of this Agreement and for a period of twenty-four (24) months following its termination, Company shall not, directly or indirectly, engage in, own, manage, operate, control, consult for, or participate in any business that competes with Client's business in any geographic market worldwide where Client conducts or has conducted business during the preceding twelve (12) months. This restriction applies to all industries and service categories in which Client operates.

7.2 Non-Solicitation. During the term and for eighteen (18) months thereafter, neither party shall directly or indirectly solicit for employment or hire any employee of the other party who was involved in the performance of Services under this Agreement.

8. GOVERNING LAW AND DISPUTE RESOLUTION

8.1 This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

8.2 Any dispute arising out of or in connection with this Agreement shall be resolved through binding arbitration in Wilmington, Delaware, in accordance with the rules of the American Arbitration Association. The arbitration shall be conducted by a single arbitrator. The decision of the arbitrator shall be final and binding.

9. INSURANCE

9.1 Company shall maintain the following insurance coverage during the term of this Agreement: (a) Commercial General Liability insurance with limits of not less than \$2,000,000 per occurrence; (b) Professional Liability (Errors & Omissions) insurance with limits of not less than \$5,000,000 per claim; (c) Cyber Liability insurance with limits of not less than \$3,000,000 per incident.

10. ASSIGNMENT

10.1 Neither party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other party, except that either party may assign this Agreement to an affiliate or in connection with a merger, acquisition, or sale of substantially all of its assets.

11. AUDIT RIGHTS

11.1 Client shall have the right to audit Company's records, processes, and systems related to the Services upon thirty (30) days prior written notice and during normal business hours, no more than once per calendar year.

12. WARRANTY

12.1 Company warrants that the Services shall be performed in a professional and workmanlike manner consistent with industry standards. Company further warrants that the Deliverables shall be free from material defects for a period of twelve (12) months from acceptance by Client (the "Warranty Period"). Company's sole obligation under this warranty shall be to re-perform the non-conforming Services or repair the defective Deliverable at no additional cost to Client.

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have executed this Master Services Agreement as of the Effective Date first written above.

NEXTERA GLOBAL TECHNOLOGIES, INC.

By: _____

Name: Sarah J. Mitchell

Title: Chief Executive Officer

Date: January 15, 2025

MERIDIAN HEALTH SYSTEMS, LLC

By: _____

Name: Dr. Robert K. Chen

Title: Managing Director

Date: _____

EXHIBIT A

STATEMENT OF WORK #1

Project: Enterprise Data Platform Migration and Analytics Suite Development

Duration: February 1, 2025 through December 31, 2025

Total Project Fee: \$2,450,000 USD, payable in monthly installments of \$245,000.

Scope: Company shall design, develop, and deploy a cloud-based data analytics platform integrating Client's existing electronic health record (EHR) systems with a new data warehouse and business intelligence dashboard.